

Bihar Outstanding Sportspersons Appointment Rules, 2009

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State of Bihar - Act

Bihar Outstanding Sportspersons Appointment Rules, 2009

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Bihar Outstanding Sportspersons Appointment Rules, 2009

Rule BIHAR-OUTSTANDING-SPORTSPERSONS-APPOINTMENT-RULES-2009 of 2009

Published on 18 December 2009

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Bihar Outstanding Sportspersons Appointment Rules, 2009

Published vide Notification No. 3/M.-253/2006-6086, dated 18.12.2009

Last Updated 26th December, 2019

Notification No. 3/M.-253/2006-6086. - In exercise of the powers conferred by proviso to Article 309 of the Constitution of India, the Governor of Bihar, makes the following Rules for appointment of outstanding Sportspersons -

1.

Short title, extent & commencement.

- (i) These Rules may be called as the Bihar Outstanding Sportspersons Appointment Rules, 2009.

(ii)

It shall extend to the whole State of Bihar.

(iii)

It shall come into force at once.

2.

Definitions.

- In these Rules, unless the context otherwise requires-

(i)

"Rules" means the Bihar Outstanding Sportspersons Appointment Rules, 2009;

(ii)

"Government" means the Government of Bihar;

(iii)

"Governor" means the Governor of Bihar;

(iv)

"Year" means the financial year, i.e. from 1st April to 31st March;

(v)

"Appointing Authority" means the Personnel & Administrative Reforms Department;

(vi)

"Sports discipline" means such sports discipline which are played in Olympic Games or Commonwealth Games or Asian Games or All India Civil Services Tournament (Except Music, Dance & Short play events);

(vii)

"International Tournament" means Olympic, World Cup, World University Games, Afro-Asian Games, Asian Championship, SAARC Games or Special Olympics in which the India has participated as a team of the Indian Olympic Association or Federation;

(viii)

"National Tournament" means such competition, which has been conducted by the Supreme National Federation of the sports discipline determined under these Rules once at senior level or the recognised Annual All India Inter University Competitions conducted in the aforesaid sports discipline;

(ix)

"Personnel Competition" means such competition in which the achievement has been due to personal efforts; and

(x)

"Team Competition" means such competition in which the achievement has been due to efforts by more than one sportsperson.

3.

Qualification.

- Under these Rules, the sportspersons having following qualifications, shall be suitable for appointment in the category of outstanding sportspersons under the services of the Government, who -

(i)

is the resident of Bihar State, and who in the defined sports disciplines in these Rules

(ii)

(a)

has secured First, Second and Third position in the team/ personal events by representing the country in the Olympic, World Cup, World University Games, Commonwealth Games, Asian Games, Afroasian Games, Asian Championship, Special Olympic or SAF Games, or

(b)

has obtained First, Second or Third position in the team/ personal events in National Games, National Senior/Junior Championship, or

(c)

has obtained First, Second or Third position in All India Inter University Tournament by representing University, or

(d)

has represented India in Olympic or Commonwealth Games or Afroasian games or Asian Games or SAF games.

4.

Selection Procedure.

- 4.1. The selection for appointment shall be on the basis of achievement obtained in the sports competition mentioned

in the foregoing Rule. For appointment on the post it shall not be sufficient for a outstanding sportsperson to have the requisite qualification only, rather the sportspersons having requisite qualification shall have to pass through a selection procedure. The Selection Committee, after adopting due procedure, shall prepare a merit list, on the basis of which appointment shall be made each year according to the merit. The advertisement for selection shall be made by the Personnel & Administrative Reforms Department in the month of April each year and after completion of all procedures appointment shall be made till the month of August.

4.2

The selection of outstanding sportspersons shall be made by the Selection Committee constituted by the State Government. The following shall be the members of the Committee-

(1) Principal Secretary/Secretary, Personnel & Administrative Reforms Department

Chairman

(2) Secretary, Art, Culture & Youth Department

Member

(3) Director General, Bihar State Sports Authority, Patna

Member

(4) Sports specialist nominated by the Art, Culture & Youth Department

Member

(5) An officer not below the rank of Deputy.

Secretary belonging to SC/ST nominated by the Personnel & Administrative Reforms Deptt.

Member

4.3

The merit list for appointment of outstanding sportsperson having requisite educational qualification as well as qualification with respect to sports discipline, shall be prepared keeping in view the seniority list mentioned in Annexure-1.

4.4

The selection shall be made on the basis of best achievement amongst the several achievements secured by a sportspersons.

4.5

For appointment, achievement secured by a sportsperson in any year shall deemed to be the suitability for appointment, provided that the age of the outstanding sportsperson is within the limit for Government employment.

4.6

In case of tie on the basis of aforesaid sports achievements, the following procedure shall be adopted to break the tie -

(a)

The personal achievement shall be treated as larger against the team achievement.

(b)

The player setting new record shall be preferred.

(c)

The achievement of high level tournament shall be preferred.

(d)

If the tie remains in spite of above, the date of birth shall be preferred.

(e)

The achievement of current year shall be given priority.

(f)

If the tie still remains, it shall be broken on the basis of percentage marks of prescribed qualification

4.7

The outstanding Sportsperson having prescribed educational qualification and requisite qualification with respect to

sports discipline shall be appointed on group 'C' posts by the Personnel & Administrative Reforms Department on the basis of recommendation of the Selection Committee. Such appointment shall be made on the posts of Bihar Secretariat Service, Bihar Secretariat Clerical Service and other group 'C' posts. In case of qualification being below Matric appointment may be made on group 'D' posts. Under the special circumstances appointments may also be made on group 'B' posts under these Rules.

4.8

Not more than three outstanding sportspersons shall be appointed in a year in any sports discipline.

4.9

To make the appointment procedure transparent provisional merit list shall be published. Grievances of any kind may be submitted to the Principal Secretary/ Secretary, Personnel & Administrative Reforms Department within 15 days of publication of merit list. After examining the grievances the final merit list shall be issued, on the basis of which appointment shall be made in accordance with seniority.

4.10

After preparation of merit list by the Selection Committee, recommendation for appointment shall be made after verification of certificates.

5.

Age limit.

- The provision of age limit determined by the State Government (Personnel & Administrative Reforms Department) from time to time shall be effective.

6.

Reservation.

- If the vacancy in the appointment of outstanding sportspersons is on the reservation point, the outstanding sportsperson shall be appointed after carrying forward the reservation point.

7.

Repeal & Savings.

- The letter No. 3792, dated 14-03-73 and Resolution No. 1086, dated 20.1.79 issued by the Personnel & Administrative Reforms Department and other instructions with respect to appointment of outstanding sportspersons shall be deemed to be repealed.

Notwithstanding such repeal, anything done or any action taken under the said circular/resolution/instructions prior to coming into force of these Rules, shall have no adverse effect.

8.

Miscellaneous.

- Notwithstanding contained any thing contrary to these Rules in any other Rules, provisions of these Rules shall have overriding effect.

9.

Removal of difficulties.

- The Government may, from time to time, issue such general or special direction as may be necessary to remove difficulties in the operation of any of the provisions of these Rules.

Annexure-I

The Priority List of Sportspersons for Appointment of Outstanding Sportspersons

1. The sportspersons having secured First, Second and Third position in the Olympic Games by representing India.
2. The sportspersons having secured First, Second and Third position in the World Cup by representing India.
3. The sportspersons having secured First, Second and Third position in the World University Games by representing India.
4. The sportspersons having secured First, Second and Third position in the Commonwealth Games by representing India.
5. The sportspersons having secured First, Second and Third position in the Afroasian Games by representing India.
6. The sportspersons having secured First, Second and Third position in the Asian Games by representing India.
7. The sportspersons having secured First, Second and Third position in the Asian Championship by representing India.
8. The sportspersons representing India in Olympic.
9. The sportspersons representing India in Commonwealth games.

10.

The sportspersons representing India in Afroasian games.

11.

The sportspersons representing India in Asian games.

12.

The sportspersons having secured First, Second and Third position in the SAF games by representing India.

13.

The sportspersons having secured First, Second and Third position in the Team/Personal Competition by representing State in National Games, National Senior Championship at National level.

14.

The sportspersons representing India in SAF games.

15.

The sportspersons having secured First, Second and Third position in the team/personal competition by representing University in All India Inter University Tournament.

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